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Women's rights in retreat?

HAMEEDA HOSSAIN

FOR over 30 years now, successive governments in Bangladesh, in keeping with constitutional guarantees, have made several principled pronouncements to gender equality and non-discrimination. They may have been persuaded by a strong women's movement, or in deference to aid promises. By ratifying UNCEDAW in 1984, and adopting the Beijing Platform of Action in 1995, Bangladesh made a commitment to introduce policies and laws which would promote equality through affirmative action for women's advancement, where necessary. A 12-point National Policy for the Advancement of Women, prepared in consultation with many women's groups across the country, was enacted in 1997. Under its guidelines, a national plan of action was formulated for each ministry. More recently a draft PRSP paper has also identified gender equality as an indicator of policies for poverty alleviation.

Bangladesh has won many plaudits for enabling women's access to opportunities, particularly in education and employment. Just a few weeks ago the World Economic Forum acknowledged that women's enrolment rates were up and maternal mortality rates had gone down. This was welcome news, but there is a general consensus that much more needs to be done to effect changes in women's rights and to enable their participation in decision making.

Now, it seems that the government may be reversing its position. A recent publication by the Ministry of Women and Children's Affairs, titled "Jatiyo Nari Unnayan Niti 2004" contains changes made in some of the articles in the 1997 policy document. These proposed changes reverse the earlier commitments made in 1997, and are likely to a backslide in women's rights. These changes are not merely stylistic but could indicate a shift in government thinking. It is strange that the publication does not mention whether they resulted from any consultations with concerned groups, or if they have been presented to the Cabinet. But the publication itself has raised questions as to what influences are at work to bring about a change in the official position. In another instance, the majority party has gone back on its electoral promise of introducing a system for direct elections to women's seats in parliament. This was a commitment made at the time of the elections by both major parties. The Fourteenth Amendment has raised the number of reserved seats to 45, but the mode of election is clearly undemocratic and not a step in women's advancement, as the women members are to be selected in proportion to political parties represented in parliament, and they will not represent a constituency. In yet a third instance, the Ministry of Local Government tried to undercut the power of women's councilors in the Khulna City Corporation by issuing instructions to limit their portfolios, which would make their role unequal to that of male representatives.

Implication of Changes in the National Policy for Women 2004

In 1997 the National Policy was formulated in consultation with many women's groups, and had drawn upon the Beijing guidelines. In 2004, amendments to articles 7, 8, 9 and 12 have changed the funda-

Women need to campaign more effectively against an impending backslide. As this is likely to affect all women, on all political sides, the campaign should bring women of different political affiliations together to resist likely regression in women's rights in the personal and public spheres. It calls for a wider sharing with women's groups across the country so that our actions are more concerted whether we address the political decision makers directly or through the courts.



Seeking seats in parliament

mental language of rights. If the new policy is adopted by the Cabinet, it will deny women rights to property, land and inheritance, it will limit their access to employment opportunities, deprive older women of much needed support, and it will not promote their equal participation in public decision making. The implications of these changes can be compared in the language of the two documents, (relevant changes are indicated in bold).

Art 7: NPWA 1997 Ensure women's equal rights in formulation and implementation of economic policy (trade policy, currency policy, tax policy etc.).

NPWA 2004 Ensure women's constitutional rights in formulation and implementation of economic policy (trade policy, currency policy, tax policy etc.).

NPWA 1997 Provide equal opportunity and partnership/share to women in property, employment,

market and business.

NPWA 2004 Provide equal opportunity to women in employment, market and business.

Art 7.2: NPWA 1997 Provide full and equal opportunity and control over right to land, earned property...inheritance, property, credit, technology, which are essential for women's economic empowerment; and enact necessary new laws to put these rights into practice

NPWA 2004 Provide full and equal opportunity and control over earned property...which are essential for women's economic empowerment; and enact necessary new laws to put these rights into practice

Art 7.3: NPWA 1997 Take all out initiatives for employment of both educated and illiterate sections of women labor force.

NPWA 2004 Take all out initiatives for appropriate employment of both educated and illiterate classes of women.